

1.

CASE #	CASE NAME	HEARING NAME
CVRI2403720	CITY OF RIVERSIDE vs LEMASTERS TAHIR	MOTION TO COMPEL DEFENDANT JEFFREY LEMASTERS TAHIR'S RESPONSES TO REQUEST FOR SPECIAL INTERROGATORIES, SET ONE AND REQUEST FOR MONETARY SANCTIONS IN THE AMOUNT OF \$1,500.00
CVRI2403720	CITY OF RIVERSIDE vs LEMASTERS TAHIR	MOTION TO COMPEL ANSWER/RESPONSES TO FORM INTERROGATORIES
CVRI2403720	CITY OF RIVERSIDE vs LEMASTERS TAHIR	MOTION TO COMPEL ANSWER/RESPONSES TO PRODUCTION OF DOCUMENTS

Tentative Ruling: Hearing continued to 7/29/26.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2504116	GDC-RCH COUNTRYSIDE, LP vs VIRAMONTES	MOTION TO VACATE VOID ENTRY'S ENTRY OF DEFAULT FOR LACK OF PERSONAL SERVICE AND LACK OF PERSONAL JURISDICTION

Tentative Ruling: Defendant Alexia Guadalupe Viramontes ("Defendant") moves to set aside the entry of default dated December 10, 2025, and the default judgment entered on April 24, 2026. Defendant argues the judgment is void under Code of Civil Procedure ("CCP") section 473(d) for lack of service, or alternatively should be set aside under CCP sections 473.5 or 473(b). Plaintiff GDC-RCH Countryside, LP ("Plaintiff") opposes the motion, asserting that Defendant was personally served and had actual notice of the litigation for months before seeking relief. For the reasons set forth below, the Court DENIES Defendant's motion in its entirety.

EVIDENTIARY OBJECTIONS

Defendant submitted six objections to the evidence provided in Plaintiff's opposition, specifically targeting the declarations of Kimmeoashay Daniels and Kevin Hannifan.

The Court overrules all of Defendant's evidentiary objections. Under Evidence Code section 647, the return of a registered process server establishes a presumption of the truth of the facts stated therein. Ms. Daniels, a registered process server, provided a declaration based on personal knowledge detailing her observations and the specific acts of service. Any discrepancies in timestamps or photo overlays noted by Defendant go to the weight of the evidence, not its admissibility. Furthermore, Plaintiff's counsel, Mr. Hannifan, properly authenticated records of service attempts and mailings based on his personal knowledge of the case's management.

The Court finds the following timeline of events to be supported by the declarations and exhibits:

- July 18, 2025: Plaintiff filed the Complaint.
- August 15 – September 16, 2025: Plaintiff attempted service on Defendant eight times. On August 15, a woman at the property denied Defendant lived there via a Ring camera. On September 16, a person in the garage observed the server, closed the door, and sped away in a vehicle to avoid contact.
- October 12, 2025: Registered process server Kimmeoashay Daniels conducted a four-hour stakeout of Defendant's residence. At 11:53 a.m., Daniels observed Defendant exit her garage to take out trash. Daniels called Defendant's name and informed her she was being served; Defendant responded by running back into the garage and attempting to close the door. Daniels placed the papers at Defendant's feet inside the garage before the door closed.
- October 14, 2025: Plaintiff filed the Proof of Service.
- December 10, 2025: Plaintiff served Defendant by mail with a Request for Entry of Default, which was entered the same day.
- January 28, 2026: Plaintiff served Defendant by mail with a package including the Request for Entry of Default Judgment and supporting evidence.
- April 24, 2026: The Court entered default judgment against Defendant.
- May 6, 2026: Defendant filed the instant motion to vacate.

Pursuant to Evid. Code § 647, a registered process server's declaration of service establishes a presumption that the facts stated in the declaration are true. (See, *Zara*, 199 Cal.App.4th at 390; *Rodriguez v. Cho* (2015) 236 Cal.App.4th 742, 750.) A party's declaration of non-service, *if credited by the trial court*, can rebut the presumption of proper service established by the declaration of a registered process server. (See *Fernandes v. Singh* (2017) 16 Cal.App.5th 932, 940, n. 6; see also *Farr v. County of Nevada* (2010) 187 Cal.App.4th 669, 682.) Importantly, "[i]t is up to the trial court to weigh the evidence, resolve conflicts in it, and assess the credibility of witnesses." (*Cornerstone Realty Advisors, LLC v. Summit Healthcare Reit, Inc.* (2020) 56 Cal.App.5th 771, 789; see also *Tucker v. Pacific Bell Mobile Services* (2010) 186 Cal.App.4th 1548, 1562 ["It is the exclusive function of the trial court to weight the evidence, resolve conflicts and determine the credibility of witnesses."] [citation and internal quotation marks omitted].)

CCP § 473(D) (VOID JUDGMENT)

A court may set aside a judgment that is void as a matter of law, such as one entered without proper service of summons. Under C.C.P. § 473(d), the court has power to set aside a judgment that is void as a matter of law. (C.C.P. § 473(d).) A judgment may be void as a matter of law for many reasons, including lack of, or improper service of, the summons. (*Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544.) "[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. Thus, a default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void." (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1444 (internal citations omitted).)

In addition to the grounds set forth in C.C.P. § 473, courts have the inherent authority to vacate a default on equitable grounds such as extrinsic fraud or extrinsic mistake. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 981.)

“Extrinsic fraud” usually arises when a party is denied a fair adversary hearing because he has been deliberately kept in ignorance of the action or proceeding, or in some other way fraudulently prevented from presenting his claim or defense. ... In contrast, the term “extrinsic mistake” is broadly applied when circumstances extrinsic to the litigation have unfairly cost a party a hearing on the merits. ... Extrinsic mistake is found when [among other things] ... a mistake led a court to do what it never intended.... (*Bae v. T.D. Serv. Co. of Arizona* (2016) 245 Cal.App.4th 89, 97–98 [internal quotations and citations omitted]; see also, *Rappleyea*, *supra*, 8 Cal.4th at 983 [clerk's misunderstanding of the number of answering defendants constituted an extrinsic mistake].) Additionally, the party seeking equitable relief on the grounds of extrinsic fraud or mistake must show three elements: (1) a meritorious defense; (2) a satisfactory excuse for not presenting a defense in the first place; and (3) diligence in seeking to set aside the default judgment once discovered. *Gibble v. Car-Lene Research, Inc.*, (1998) 67 Cal.App.4th at p. 315, 78 Cal.Rptr.2d 892.

Here, the court finds that Plaintiff established a presumption of valid service through the Proof of Service filed on October 14, 2025. (Daniels Decl. ¶¶4-5). This presumption is bolstered by the detailed declaration of Kimmeoashay Daniels and photographic evidence showing Defendant at her garage at the exact time of service. (Daniels decl. ¶¶5-8; Exhibit A-B). On the hand, court finds Defendant's denial of service is self-serving and not persuasive. *Rodriguez v. Cho* (2015) 236 Cal.App.4th 742, 750-753. California law holds that service is valid if a server identifies the papers and leaves them as close as possible to a defendant who is attempting to flee or refuse acceptance. *Trujillo v. Trujillo* (1945) 71 Cal.App.2d 257, 260. While the discrepancies in the process server's timestamps may cause pause, they are viewed as "weight of evidence" issues rather than proof that the service event never occurred, especially since Defendant admits being at the scene. Defendant admits she was home and retreated to her garage when approached. (Alexia Guadalupe Viramontes decl. ¶¶ 2-4; 7-9). This corroborates the process server's account of a "drop service" encounter where the defendant fled to avoid contact. The Court finds the server's account of “drop service” credible. As such, because service was valid, the judgment is not void.

Plaintiff documented eight prior service attempts, including an instance where an individual matching Defendant's description sped away in a vehicle to avoid the server. This pattern of behavior supports the Plaintiff's claim that Defendant was actively evading service. (Declaration of diligence; Nieves, Registered California Process Server).

CCP § 473.5 (LACK OF ACTUAL NOTICE)

CCP § 473.5(a) provides: “When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action.” (CCP § 473.5(a).) “This section is designed to provide relief where there has been *proper* service

of summons (e.g., by substitute service or by publication) but defendant nevertheless did not find out about the action in time to defend.” (Weil & Brown, *Civil Procedure Before Trial* (The Rutter Group 2022) ¶ 5:420, p. 5-1222 [italics in original].)

Relief is available if service did not result in “actual notice to a party in time to defend,” provided the lack of notice was not caused by the party’s “avoidance of service or inexcusable neglect”. The moving party must also serve a copy of their proposed answer with the motion.

Relief is unavailable here for three reasons. First, Defendant had actual notice via personal service on October 12, 2025. Second, even if personal service were disputed, Defendant received notice by mail of the default proceedings in December 2025 and January 2026 but chose to do nothing for nearly six months. This constitutes inexcusable neglect. Third, the evidence of Defendant running from the process server and the prior unsuccessful attempts suggest an active avoidance of service. Finally, Plaintiff asserts Defendant failed to serve the proposed answer with the motion, which is a required statutory ground for denial.

CCP § 473(B) (MISTAKE OR EXCUSABLE NEGLIGENCE)

CCP §473(b) provides that the court may relieve a party from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect within six months after judgment, dismissal, order, or proceedings has been taken. In the absence of an attorney affidavit of fault, the burden is on the moving party to show that the default could not have been avoided through the exercise of ordinary care. *Jackson v. Bank of America* (1983) 141 Cal.App.3d 55, 58.

C.C.P. section 473(b) also provides discretionary relief, stating: “[t]he court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” In ruling on motions brought under the discretionary provision of section 473(b), the general policy favors granting relief and a trial on the merits. *Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233. When relief is sought promptly and there is no prejudice to the other side, even a weak showing will suffice. (*Ibid.*) However, mistake, inadvertence, or neglect will only warrant relief when upon consideration of all the evidence it is found to be of the excusable variety. (*Jackson v. Bank of America* (1983) 141 Cal.App.3d 55, 58.) To determine whether a mistake or neglect was excusable, “the court inquires whether ‘a reasonably prudent person under the same or similar circumstances’ might have made the same error.” *Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 258, quoting from *Bettencourt v. Los Rios Community College Dist.* (1986) 42 Cal.3d 270, 276. The moving party has the burden of showing that the neglect leading to default was excusable. (*Jackson, supra*, at p. 58.) This burden necessarily requires the production of evidence. (*Hopkins & Carley v. Gens* (2011) 200 Cal.App.4th 1401, 1411.)

The court may relieve a party from a judgment taken through “mistake, inadvertence, surprise, or excusable neglect” if sought within six months. The burden is on the moving party to show the default could not have been avoided through ordinary care.

Defendant failed to demonstrate any specific facts constituting excusable neglect. *Hopkins & Carley v. Gens* (2011) 200 Cal.App.4th 1401, 1410. Simply denying service—when service is documented by a registered professional—is insufficient. Furthermore, Defendant’s six-month delay in responding to the default papers mailed to her home address is entirely unexplained and does not reflect the exercise of ordinary care.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2504604	BONELLO vs CITY OF CORONA	MOTION TO SET ASIDE ON 3RD AMENDED COMPLAINT

Tentative Ruling: Defendant’s Motion to Set Aside Entry of Default is granted. The clerk’s entry of default against the City of Corona (City) dated June 3, 2026, is hereby vacated. The City is ordered to file and serve its responsive pleading to the Third Amended Petition (TAP) within 20 days of this order.

Order to show cause is set for 8/31/26, as to why sanctions not to exceed \$1,500.00 or dismissal should not be imposed for Failure to file request for entry of default of defendant on complaint pursuant to CRC 3.110(g) as to Nicholas Bonello.

Under C.C.P. § 473(d), the court has power to set aside a judgment that is void as a matter of law. (C.C.P. § 473(d).) A judgment may be void as a matter of law for many reasons, including lack of, or improper service of, the summons. (*Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544.) “[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction. Thus, a default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void.” *Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1444 (internal citations omitted). Compliance with statutory procedures for service and the established limits of a clerk’s ministerial authority are essential to the validity of a default entry. *Bristol Convalescent Hospital v. Stone* (1968) 258 Cal.App.2d 848 explains, the clerk “has no duty and no authority himself to make a determination whether the answer to the original complaint might stand as an answer to the amended complaint”; the clerk’s function is to determine whether proof of service exists and whether a response “has been filed within the time allowed by law.” *Id.* at p. 862.

The City correctly contends that the clerk’s entry of default was void because the City had already made multiple general appearances in this action. Pursuant to Code of Civil Procedure § 1014, the filing of a demurrer constitutes a general appearance as a matter of law. Generally, a general appearance precludes the entry of default, even if a defendant fails to timely respond to a later iteration of a pleading. As established in *Stevens v. Torregano* (1961) 192 Cal.App.2d 105, a default is void and properly set aside where a valid general appearance is already on file. The clerk acts ministerially and lacks the authority to determine the legal sufficiency of existing appearances or to disregard an appearing party’s right to notice.

The only exception to the rule protecting appearing parties from default is where a plaintiff makes a "material amendment" to the complaint that opens the default by increasing the defendant's exposure. Code Civ. Proc. § 585, subd. (a)-(c); *Contract Engineers, Inc. v. California-Doran Heat Treating Co.* (1968) 258 Cal.App.2d 546, 549. An amendment is material if it subjects the defendant to increased damages. Here, the TAP did not increase